

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

EXCLUSION – INSOLVENT CARRIER

- A.** The following Exclusion is added to **SECTION I – COVERAGES**, paragraph **2. Exclusions** of **COVERAGE A – BODILY INJURY AND PROPERTY DAMAGE LIABILITY**, paragraph **2. Exclusions** of **COVERAGE B – PERSONAL AND ADVERTISING INJURY LIABILITY**

2. Exclusions

This insurance does not apply to:

Claim With An Insolvent Carrier

- (1) That part of any claim, allegation, investigation, hearing, arbitration, mediation, lawsuit, defense, fine, penalty, damage, award, allocation, order or liability that would otherwise be the subject of coverage of, by, for or against any of your previous, present and/or future insurance carriers, or those of your subcontractors, that are allegedly or in fact unwilling or unable to defend or indemnify you, your subcontractors, or others on your behalf, or on your behalf of your subcontractors, to whom you or your subcontractors are allegedly obligated, by reason of any voluntary, regulatory, statutory or court imposed restraint, supervision, conservation, rehabilitation, insolvency or liquidation; or
- (2) Any increase in contribution to, or substitute for, any loss or expense that is attributable, in whole or in part, to any insurer encompassed by paragraphs (1) above, in order to effect a settlement or satisfy a judgment or award in any claim that is otherwise covered only in part by this policy.

This exclusion applies to any operations that occur:

1. Prior to the inception of this policy; or
2. During this policy term; or
3. Prior to the inception of this policy and continue during the policy term.